

IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF IOWA
CENTRAL DIVISION

MARY CAMILLE WALKER,
Plaintiff,

vs.

UNITED STATES OF AMERICA,
Defendant.

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Case No.

COMPLAINT

COMES NOW Plaintiff, Mary Camille Walker, by and through her attorney and for her cause of action against the Defendant, United States of America, states the following:

JURISDICTION AND VENUE

1. This action arises under the Federal Tort Claims Act (FTCA), Sections 2671 through 2680 of Title 28 of the United States Code. This Court is vested with jurisdiction pursuant to Section 1346(b) of Title 28 of the United States Code.

2. At all times material, Plaintiff was a resident of Dallas County, Iowa, which is within the central division of the Southern District of Iowa.

3. On or about December 15, 2022, the representative from the National Tort Center verbally extended an offer to Plaintiff's counsel in the amount of \$20,000 which was declined as inadequate compensation for Plaintiff's injuries.

FACTS

Plaintiff hereby states:

4. Paragraphs 1 through 3 above are hereby incorporated as if set forth fully herein.

5. On January 30, 2021, at approximately 1 p.m. Plaintiff, Mary Camille Walker, was alerted by the sight and sound of a vehicle southbound on the gravel road near her home on Maple Ridge Drive in Adel, Dallas County, Iowa.

6. Mary Camille Walker brought the family dog that she was walking to the extreme side of the roadway and placed her hand on the dog's head to assure that the pet would

remain in position while the vehicle passed. At the time of the incident Plaintiff was wearing bright clothing and a backpack with reflective tape and both she and the dog were visible from a significant distance to vehicles coming from either direction on Maple Ridge Drive.

7. Unbeknownst to Plaintiff a second vehicle was also on Maple Ridge Drive moving northbound toward the Plaintiff and her dog. The northbound vehicle was operated by Jodee Lynne Blair who was acting within the scope of her employment as a mail carrier for the United States Postal Service. The vehicle driven by Ms. Blair struck the Plaintiff throwing her to the ditch and also struck the family pet killing the animal.

8. The actions of Jodee Lynne Blair were negligent in the following particulars:

- a. Failing to keep a proper lookout;
- b. Failing to yield the right of way to pedestrians;
- c. Driving too close to the edge on the right side of the roadway;
- d. Driving at a speed in excess of the speed limit;
- e. Driving at a speed too fast for conditions then and there existing;
- f. Attempting to sort/organize the mail while driving her vehicle and thereby taking her eyes off the roadway;
- g. Failing to act as a reasonable person under the conditions then and there existing.

9. The negligence of Jodee Lynn Blair was a proximate cause of the temporary and permanent injuries and damages suffered by Plaintiff Mary Camille Walker including, but not limited to, medical expenses, pain and suffering, loss of function, loss of income, property damage (dog) and other related damages to be shown at time of trial.

WHEREFORE, Plaintiff prays for judgment against Defendant, United States of America, in an amount to be determined as reasonable and proper at the time of trial, for actual damages, for costs of this action, for interest as allowed by law and for such other and further relief as the Court deems just and proper.

A handwritten signature in black ink, appearing to read "Rob Garver", is positioned above a horizontal line.

ROBERT B. GARVER, #AT0002776
475 South 50th Street, Suite 200
West Des Moines, IA 50265
Telephone: (515) 221-1111
Fax: (515) 221-1570
Email: robgarverlaw@gmail.com
ATTORNEY FOR PLAINTIFF